

Oaths Act, 1969

[44 OF 1969]

An Act to Consolidate and amend the law relating to judicial oaths and for certain other purposes

BE it enacted by Parliament in the Twentieth Year of the Republic of India as follows:—

Short title and extent.

1. (1) This Act may be called the Oaths Act, 1969.
- (2) It extends to the whole of India '[* * *].

Saving of certain oaths and affirmations.

2. Nothing in this Act shall apply to proceedings before courts material or to oaths, affirmations or declarations prescribed by the Central Government with respect to members of the Armed Forces of the Union.

Power to administer oaths.

3. (1) The following courts and persons shall have power to administer, by themselves or, subject to the provisions of sub-section (2) of section 6, by an officer empowered by them in this behalf, oaths and affirmations in discharge of the duties imposed or in exercise of the powers conferred upon them by law, namely:—
 - (a) all courts and persons having by law or consent of parties authority to receive evidence;
 - (b) the commanding officer of any military, naval, or air force station or ship occupied by the Armed Forces of the Union, provided that the oath or affirmation is administered within the limits of the station.
- (2) Without prejudice to the powers conferred by sub-section (1) or by or under any other law for the time being in force, any court, Judge, Magistrate or person may administer oaths and affirmations for the purpose of affidavits, if empowered in this behalf—
 - (a) by the High Court, in respect of affidavits for the purpose of judicial proceedings; or
 - (b) by the State Government, in respect of other affidavits.

1. Words “except the State of Jammu and Kashmir” omitted by the Jammu and Kashmir Reorganisation Act, 2019, w.e.f. 31-10-2019.

COMMENTS

CASE LAWS

- ◆ **Validity of Oath Commissioners Administering Oaths in Non-Judicial Proceedings** - The petitioner challenged Rule 23(3) of the Rajasthan Minor Mineral Concession Rules, 1986, arguing that Oath Commissioners were not competent to administer oaths in non-judicial proceedings, and only Notaries appointed under the Notaries Act, 1952 had such authority. The High Court rejected this contention by relying on a State Government Notification dated 8 November 1977 issued under section 3(2)(b) of the Oaths Act, 1969. This notification empowered Oath Commissioners appointed by the Rajasthan High Court, Board of Revenue, District Judges, and Collectors to administer oaths for affidavits to be used in non-judicial proceedings. The Court observed that this provision expanded access to oath administration across the State, reducing travel and cost burdens on the public and preventing monopolistic practices. Thus, the phrase “Oath Commissioner” in Rule 23(3) and the corresponding notification was held valid and within statutory authority – *Kailash Chandra v. State* AIR 1994 RAJASTHAN 177.
- ◆ **False Affidavit Filed before Authority – Lease Right Validly Cancelled** - The dispute concerned cancellation of a residential lease allotment granted to the plaintiff by NOIDA. The lease was revoked on the ground that both the plaintiff and his wife had filed false affidavits denying ownership of any other property, despite the wife already being allotted another plot. The Supreme Court upheld the cancellation, holding that an affidavit, being a solemn statement under oath as defined under section 3(2) of the Oaths Act, 1969, carries sanctity and legal consequence. Filing a knowingly false affidavit constitutes fraud and disentitles the deponent from equitable relief. The Court clarified that affidavits are not mere formalities but are solemn declarations made before a person authorized under the Oaths Act. Since the affidavits were wilfully false and material to the eligibility for allotment, the Authority was justified in cancelling the lease without further proceedings. Irregularities in procedural authorization were held cured by subsequent ratification. Fraud in obtaining the lease nullified any claim for relief – *New Okhla Industrial Development Authority v. Ravindra Kumar Singhvi (Dead) by LRs* AIR 2022 SC 928.
- ◆ **Authority to Administer Oath – Judicial Magistrate not covered under executive notification** - The issue arose over the validity of directions allowing First Class Judicial Magistrates and Block Development Officers to administer oaths for affidavit purposes. The petitioner, a notary, challenged such directions, arguing that under section 3(2)(b) of the Oaths Act, only those authorized by the State Government could administer oaths for non-judicial purposes. The Court held that the term “Executive Officer” is not statutorily defined but, contextually, includes officials performing executive functions, such as Block Development Officers and Circle Officers, thus validating the State Government’s authorisation in their case. However, the Court ruled that Judicial Magistrates, being part of the judiciary after the separation of powers under the new CrPC, cannot be classified as “Executive Officers” under this provision. Hence, the Registrar’s direction authorizing Judicial Magistrates to administer oaths for affidavits under the pension scheme for freedom fighters was quashed – *Nawal Kishore Sharma v. State* AIR 1985 PATNA 293.

Oaths or affirmations to be made by witnesses, interpreters and jurors.**4. (1) Oaths or affirmations shall be made by the following persons, namely:—**

- (a) all witnesses, that is to say, all persons who may lawfully be examined or give, or be required to give, evidence by or before any court or person

having by law or consent of parties authority to examine such persons or to receive evidence;

- (b) Interpreters of questions put to, and evidence given by, witnesses; and
- (c) Jurors:

Provided that where the witness is a child under twelve years of age, and the court or person having authority to examine such witness is of opinion that, though the witness understands the duty of speaking the truth, he does not understand the nature of an oath or affirmation, the foregoing provisions of this section and the provisions of section 5 shall not apply to such witness; but in any such case the absence of an oath or affirmation shall not render inadmissible any evidence given by such witness nor affect the obligation of the witness to state the truth.

(2) Nothing in this section shall render it lawful to administer, in a criminal proceeding, an oath or affirmation to the accused person, unless he is examined as a witness for the defence, or necessary to administer to the official interpreter of any court, after he has entered on the execution of the duties of his office, an oath or affirmation that he will faithfully discharge those duties.

COMMENTS

CASE LAWS

- ◆ **Corporate Body not a Competent Witness under Oaths Act** - In a criminal prosecution against a company, the issue arose whether an incorporated company could claim protection under Article 20(3) of the Constitution, which bars compulsion to be a witness against oneself. The Court analyzed the legal capacity of a juristic person to act as a “witness” under the Oaths Act, 1969, and held that only natural persons can make an oath or affirmation, as required by section 4. Since a company cannot physically or legally take an oath, it cannot be treated as a “witness” capable of furnishing oral or self-incriminating testimony. The Evidence Act also supports this view, as oral evidence must be direct and based on perception through human senses—capabilities a body corporate lacks. Therefore, a company cannot become a “witness,” and hence Article 20(3)’s protection against self-incrimination does not extend to it. Further, evidence given by company employees cannot be equated with self-incriminating evidence by the company itself – *Godrej Soap Ltd. v. State* 1991 CRI. L. J. 828.
- ◆ **Child witness – Competency without preliminary Oath examination** - In a case of homicide where an 8-year-old child witnessed his mother being shot with an arrow by the accused, the Trial Court recorded his testimony without conducting a formal preliminary examination to assess his competence or his understanding of the oath. The High Court addressed this procedural lapse, holding that while it is desirable for Trial Courts to record preliminary questions to determine a child witness’s competence under section 118 of the Evidence Act and the proviso to section 4(1) of the Oaths Act, the absence of such examination does not render the testimony inadmissible. The appellate Court has authority to assess the witness’s maturity and understanding by examining the nature, consistency, and clarity of the testimony given and the manner in which the child faced cross-examination. In this case, the Court found the child to be intelligent and capable of giving rational answers, and his testimony was found credible and corroborated by another eyewitness. Hence, the child’s evidence was upheld as valid – *Kabiraj Tudu v. State of Assam* 1994 CRI. L. J. 432.
- ◆ **Illegality of administering Oath to accused for confessional statement** - In a murder case where the prosecution relied on a judicial confession recorded by a Magistrate,

the accused challenged the admissibility of the confession on the ground that the Magistrate had administered an oath before recording it. The High Court held that under section 4(2) of the Oaths Act, 1969, no oath or affirmation can be administered to an accused in a criminal proceeding unless he is examined as a defence witness. Further, section 164(5) of the Cr.P.C. explicitly prohibits administering an oath while recording a confession. The Court observed that such an act compromises the voluntariness of the confession and violates Article 20(3) of the Constitution, which protects against self-incrimination. As the confession was obtained in contravention of these provisions, it was held inadmissible in evidence. Nevertheless, based on strong circumstantial evidence, including the accused's presence at the scene with the weapon and bloodstained clothes matching the deceased's blood, the conviction was upheld – *Arjun Rai v. State of Sikkim* 2004 CRI. L. J. 4747.

- ◆ **Affidavit evidence under Oath – Validity despite cross-examination confusion** - In an eviction suit based on *bona fide* requirement of the landlord, the tenant argued that the landlord's affidavit evidence was not valid as it had not been made under oath. This claim was based on a cross-examination statement where the landlord admitted that only his advocate was present when he signed the affidavit. However, the Court found that this isolated statement did not negate the fact that the affidavit bore the seal of the Oath Commissioner, was identified by a witness, and explicitly stated that it was solemnly affirmed. The Court reiterated that under section 4 of the Oaths Act, 1969, affidavits must be affirmed before an authorized officer, and once this procedural requirement is fulfilled on record, subsequent contradictory oral claims cannot override the formal affirmation. Thus, the affidavit was held to be valid and properly sworn – *Bishnu Prasad Bhagat v. Prakash Basnett* 2020 AIR CC 277 (SIK).
- ◆ **Affidavit by accused on Oath – Violation of right against self-incrimination** - In this constitutional challenge concerning procedural delays in sentencing and victim compensation, a key issue arose from mandatory guidelines issued in a prior judgment requiring convicts to submit affidavits on oath disclosing income and assets post-conviction. These affidavits, used to determine compensation under section 357 of CrPC, were found to conflict with statutory protections under section 4(2) of the Oaths Act, 1969. The Court held that compelling an accused to submit financial details on oath, especially after conviction and before sentencing, contravenes the legislative bar on administering oaths to accused persons unless they testify for the defence. It emphasized that under section 4(2), no oath can be lawfully administered to an accused during criminal proceedings unless they choose to become a witness. Since such affidavits may contain self-incriminatory information or provide leads for further investigation, the requirement infringed both statutory and constitutional protections. Consequently, the mandatory directive for filing affidavits on oath was struck down – *Saif Ali alias Sohan v. State GNCT of Delhi* 2025 CRI. L. J. 1567.
- ◆ **Child witness above 12 years – Presumption of competency** - In a murder case involving the sister of the accused, the prosecution relied on the testimonies of three eyewitnesses, including a child witness aged around 13 at the time of trial. The defence argued that the child's testimony should not be relied upon as the Trial Court did not conduct a preliminary examination to test her competency before administering the oath. The High Court held that under section 4 of the Oaths Act, 1969, read with section 118 of the Evidence Act, a child aged 12 years or more is presumed to possess sufficient understanding to testify, and the Court need not conduct a preliminary "voir dire" unless there is doubt about competency or a specific objection is raised. Since no such objection was raised during the trial and the testimony of the witness was rational, coherent, and corroborated by other evidence, her testimony was admissible and reliable. The Court further noted that children between 7 and 12 occupy a transitional phase and only those below 12 with inadequate understanding require special treatment under

the Oaths Act. The conviction was upheld – *Santosh Roy v. State of W.B.* 1992 CRI. L. J. 2493.

- ◆ **Admissibility of testimony of child witness administered Oath after preliminary Inquiry** - In a murder case, the prosecution's case rested significantly on the testimony of a child witness aged around five to seven years who witnessed his uncle slit the throat of his father during a domestic dispute. Before recording the child's statement, the Trial Court conducted a preliminary inquiry to assess his understanding of truth and the consequences of lying. Satisfied with the child's rational responses, the Court administered the oath and recorded his evidence. The High Court upheld the admissibility of the testimony, emphasizing that section 4 of the Oaths Act, 1969 permits administering oath to a child witness only after the Court is convinced of their ability to understand and speak the truth. The child's evidence was found coherent, natural, and corroborated by medical and circumstantial evidence. The Court concluded that the mere tender age of a witness does not render their testimony inadmissible when foundational competence is established – *Sompal v. State of U.P.* 2019 CRI L J 3433 (ALL).
- ◆ **Interpreter's Oath – Omission not Fatal when no prejudice shown** - In a prosecution under the POCSO Act, the victim, a mentally impaired minor girl, was examined in Court with the help of an interpreter due to her use of a local dialect. It was later contended that no oath was administered to the interpreter, rendering the testimony inadmissible under section 4 of the Oaths Act, 1969. The High Court acknowledged that section 4 mandates administering oaths to interpreters but emphasized that section 7 cures such procedural omissions, stating they do not invalidate the proceedings or render evidence inadmissible. The Court found no objection raised at trial by the defence regarding the accuracy of interpretation, and noted that the interpreter was cross-examined and no suggestion of incorrect translation was made. Moreover, the defence counsel himself conducted cross-examination in the same local dialect, demonstrating no actual prejudice. Thus, the omission to administer oath to the interpreter did not vitiate the trial or evidence – *Hari Ram v. State of H.P.* AIRONLINE 2024 HP 411.
- ◆ **Oath not required for Child witness under 12** - The prosecution in a murder trial relied on the testimony of a minor child and the child's mother to prove that the accused violently killed his two-year-old daughter by smashing her head against the floor and assaulted his wife with a wooden plank. The Trial Court had convicted the accused only for causing death by rash or negligent act under section 304A IPC and voluntarily causing hurt under section 323 IPC. On appeal by the State, the High Court examined the correctness of the conviction and also addressed the competency of a child witness below the age of 12. It was held that the law does not require the administration of an oath to a child witness under 12 years of age. Absence of an oath does not render such a witness's testimony inadmissible; refusal to examine such a child solely on that basis is impermissible. The Court found the sole eyewitness (wife) to be reliable and concluded that the act was not accidental or negligent but intentional, causing injuries sufficient in the ordinary course of nature to cause death. The conviction was thus altered from section 304A to section 302 IPC — *State of Kerala v. Kuttappan* 1982 CRI. L. J. 1702.

Affirmation by person desiring to affirm.

5. A witness, interpreter or juror may, instead of making an oath, make an affirmation.